

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER NO. 96-284

WASTE DISCHARGE REQUIREMENTS
FOR
DEL REY COMMUNITY SERVICES DISTRICT
NEW DOMESTIC WASTEWATER TREATMENT FACILITY
FRESNO COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Board) finds that:

1. The Del Rey Community Services District (hereafter Discharger) owns and operates an existing WWTF with a capacity of 0.35 million gallons per day (mgd) that treats domestic and industrial discharges, mostly from fruit processing and packing plants. Domestic wastewater accounted for only about 32% of the combined wastewater flow of 0.41 mgd. The discharge from the existing WWTF is presently regulated by Waste Discharge Requirements (WDRs) Resolution No. 69-263, adopted by the Board in March 1969. Monitoring and Reporting Program No. 69-263 was revised in July 1994.
2. The Discharger submitted a Report of Waste Discharge dated 16 December 1995, and technical information dated 3 September 1996, for its proposal to construct a new domestic Wastewater Treatment Facility (WWTF), hereafter referred to as new domestic WWTF. The new domestic WWTF will be at 11495 East American Avenue in Del Rey. The property (Assessor's Parcel Nos. 350-03-16, -19, -20, and 332-20-07) is owned by the Discharger.
3. The Discharger has been in continuous violation of the five-day effluent Biochemical Oxygen Demand (BOD₅) and average monthly flows since 1985. In August 1989, Cease and Desist Order No. 89-153 (C&D) was adopted by the Board. In April 1991, the matter was referred to the State Attorney General (AG). In November 1992, the AG filed for a preliminary and permanent injunction against the Discharger in Fresno County Superior Court. In October 1993, Judgement Pursuant to Stipulation Case No. 474246-6, was approved by Fresno County Superior Court.
4. In March 1994, the District submitted a long-term improvement plan for construction of separate industrial and domestic WWTFs to permanently resolve its noncompliance. The new domestic WWTF, expected to be completed in December 1996, is the subject of this Order.
5. The design capacity of the new domestic WWTF will be 0.3 million gallons per day (mgd). The WWTF will be designed to treat waste with BOD₅ concentration of 300 mg/l, the maximum strength of typical municipal waste. The wash water generated by three packing plants that wash and pack fresh fruits meets this criteria. These fruit packing plants do not

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process fruits or discharge process wastewater. While fruit processing wastewater will not be accepted, domestic waste from fruit process plants will be.

6. The new domestic WWTF will be an extended aeration system consisting of headworks, one aeration basin, a secondary clarifier, three aerobic digesters, a sludge dewatering unit (Wedge-Wire), and 19 sludge drying beds. The design parameters are based on influent BOD₅ and TSS concentrations of 300 mg/l. The treatment efficiency for BOD₅ and TSS is estimated to be about 90 percent. Wastewater will be discharged to six evaporation-percolation ponds.
7. The technical information describes the discharge to the evaporation-percolation ponds as follows:

Average dry weather, 30-day design flow: 0.3 mgd

<u>Constituent</u>	<u>Unit</u>	<u>Monthly Average</u>
BOD ₅ ¹	mg/l	30
TSS	mg/l	30

¹ 5-day, 20°C biochemical oxygen demand.

8. Effluent from the evaporation-percolation ponds will be mixed with irrigation water and recycled on 39 acres of pasture owned by the Discharger. Border irrigation is used on 20 acres of the pasture and sprinklers on the remaining 19 acres. In addition to the pasture, the Discharger anticipates purchasing a 40-acre vineyard (next to the pasture) for water recycling. If the vineyard is purchased, it will be irrigated with a mixture of recycled water and irrigation water via a furrow irrigation system. The Discharger reports that recycled water will not be applied on the vineyard during harvest. During the growing season, grapes will not contact recycled water.
9. The produced sludge will be used exclusively on-site. Sludge from the aerobic digester will be mechanically dewatered and then dried in beds and applied as a soil amendment on the acreage described in Finding No. 8.
10. The Discharger currently has a source control program, as embodied in Ordinance No. 1996-2 adopted on 1 July 1996, but has not always had one, as evidenced by the enforcement problems summarized in Finding No. 3. The Discharger has a long and poor

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history of enforcing the earlier ordinances or otherwise limiting individual waste volume and quality so that it complied with its WDRs. Accordingly, the Board believes closer oversight of implementation of the Ordinance and allocation of WWTF capacity is warranted.

11. The Discharger may modify and utilize the existing WWTF in the future for treatment of industrial wastewater, if needed. The Discharger submitted a Report of Waste Discharge (RWD) in December 1995 to discharge just treated process wastewater at the existing WWTF. However, the Discharger has formally requested that the Board not act on the RWD until further notice. Until the Discharger complies with the Water Code at the existing WWTF by ceasing discharge, complying with Order No. 69-263, or complying with revised WDRs, Order No. 69-263 and associated enforcement shall remain in effect.
12. The new domestic WWTF is in Section 4, T15S, R22E, MDB&M, with surface water drainage toward McCall Ditch and Garfield Ditch, as shown in Attachment A, which is attached hereto and part of this Order by reference. The site lies within the Consolidated Hydrologic Area (No. 551.70), as depicted on interagency hydrologic maps prepared by the Department of Water Resources in August 1986.
13. The *Water Quality Control Plan for the Tulare Lake Basin, Second Edition*, (hereafter Basin Plan) designates beneficial uses and contains water quality objectives for all waters of the basin. These requirements implement the Basin Plan.
14. McCall and Garfield ditches were constructed to flow southwest along old alignments of Collins Creek and the Kings River. The Basin Plan does not designate beneficial uses for the constructed ditches, however, it does group the natural water bodies in the valley floor as Valley Floor Waters. The beneficial uses of Valley Floor Waters are industrial and agricultural supply; water contact and non-contact water recreation; wildlife and warm water habitat; groundwater recharge; and preservation and enhancement of rare and endangered aquatic species. Lacking any information about beneficial uses specific to these ditches, McCall and Garfield ditches are considered to have all these same uses.
15. The beneficial uses of underlying groundwater are domestic, industrial, and agricultural supply.
16. According to the *Soil Survey of Eastern Fresno County*, prepared by the United States Department of Agriculture, Natural Resources Conservation Service, the dominant top soil (within the root zone) is Exeter sandy loam and Exeter loam with soil permeability ranging from 2.5 to 5 inches per hour.

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17. In 1990, the Discharger installed a groundwater monitoring network consisting of three upgradient wells (CW-1 through CW-3), three on-site wells (S-1, S-3, and S-4), and three downgradient wells (DS-1, DS-3, and DS-4). On-site wells are between the upgradient and downgradient wells. In addition to monitoring the above-mentioned wells, the Discharger has provided the Board results of samples collected from an on-site agricultural well (Well S-2) and a deep downgradient domestic well (DS-2). The Discharger is in the process of abandoning wells S-2 and DS-2.

The groundwater monitoring wells CW-2, CW-3, and S-3 are comprised of shallow and deep wells "S" and "D", respectively. Shallow wells are about 12 feet below ground surface (bgs) and deep wells are 30 to 70 feet bgs. The shallow wells have been dry for the last five years. Due to inclusion of the pasture and the vineyard, the Discharger plans to modify its current groundwater monitoring network by installing additional monitoring wells.

18. The Discharger began submitting monthly groundwater monitoring reports in 1992. Based on the reports, depth to the uppermost groundwater in the vicinity of the treatment plant ranges from 30 to 70 feet bgs. Groundwater flow direction is to the south and southwest.
19. The groundwater monitoring reports submitted in early 1992 showed manganese and iron concentrations in the on-site wells at unfiltered concentrations in excess of the State Secondary Maximum Contaminant Levels (MCLs) for drinking water. Beginning in 1993, the samples were filtered and the metal concentrations dropped below MCLs or below detectable concentrations.
20. The March 1996 groundwater monitoring report indicates that iron or manganese was not detected in any well. Nitrate (NO_3) concentrations in the upgradient wells CW-1 and CW-2 were 44 and 41 mg/l, respectively. Nitrate concentrations in the on-site well S-1 was 190 mg/l; S-3 was 53 mg/l; and S-4 was 32 mg/l. The downgradient wells DS-2 and DS-4 contained nitrate concentrations of 1.6 and 35 mg/l, respectively. However, nitrate was not detected in downgradient wells DS-1 and DS-3. The average conductivity (specific electrical conductance at 25°C, also EC) in the upgradient and the downgradient wells was 270 $\mu\text{mhos/cm}$ and 540 $\mu\text{mhos/cm}$, respectively.
21. Annual precipitation in the area is about 10 inches and average annual pan evaporation is about 65 inches.
22. The proposed discharge is consistent with the antidegradation provisions of 40 CFR 131.12 and State Water Resources Control Board Resolution 68-16. From the monitoring well data, some mineral increase occurs between the upgradient and downgradient wells, but the

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discharge, if in compliance with this Order, will not have an adverse impact on the beneficial uses of the underlying groundwater.

23. Storm water at the new domestic WWTF will be contained on-site, so there is no storm water discharge from the WWTF to a surface water of the United States that is subject to storm water regulations promulgated pursuant to Section 402(p) of the Clean Water Act.
24. The California Department of Health Services (DHS) has established statewide water recycling criteria in Title 22, California Code of Regulations (CCR), Section 60301, et seq. (hereafter Title 22) for the use of recycled water and has developed guidelines for specific uses.
25. In February 1996, a Memorandum of Agreement (MOA) was adopted between the State Water Resources Control Board (SWRCB) and DHS. The MOA provides coordinated review and approval of reclamation projects (now referred to as recycling projects) to assure that respective authorities of the two departments are exercised cohesively. Pursuant to the MOA, dischargers who recycle or propose to recycle water must file an engineering report and thoroughly describe the recycling project. In the process of issuing water recycling requirements, the Board must consider comments and recommendations of DHS. The Discharger submitted a water recycling report and the report was reviewed by DHS. Comments provided by DHS have been considered and incorporated in this Order.
26. On 19 December 1995, the Del Rey Community Services District adopted a mitigated Negative Declaration for the new project in accordance with the California Environmental Quality Act (CEQA) (Public Resources Code Section 21000, et seq.) and the State CEQA Guidelines. Based on Board review of the document, the project as approved will not have a significant impact on water quality if operated in accordance with the proposed Order.
27. The Board has notified the Discharger and interested agencies and persons of its intent to prescribe waste discharge requirements for this discharge and has provided them with an opportunity for a public hearing and an opportunity to submit their written views and recommendations.
28. The Board, in a public meeting, heard and considered all comments pertaining to the discharge.

IT IS HEREBY ORDERED that Del Rey Community Services District, its agents, successors, and assigns, in order to meet the provisions contained in Division 7 of the California Water Code and regulations adopted thereunder, shall comply with the following:

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A. Discharge Prohibitions

1. Discharge of wastes to surface water drainage courses is prohibited.
2. Bypass or overflow of untreated or partially treated waste is prohibited.
3. Discharge of waste classified as 'hazardous' or 'designated', as defined in Sections 2521(a) and 2522(a) of Title 23, CCR, Section 2510, et seq., (Chapter 15) is prohibited.
4. Discharge of sludge classified as 'hazardous', as described in Title 22, CCR, Division 4.5, Chapter 11, Article 3, is prohibited.

B. Discharge Specifications

1. The monthly average daily dry weather flow shall not exceed 0.30 million gallons.
2. Objectionable odors originating at this facility shall not be perceivable beyond the limits of the WWTF, evaporation-percolation ponds, and water recycling areas.
3. As a means of discerning that ponds are in compliance with Discharge Specification No. B.2, the dissolved oxygen content in the upper zone (1 foot) of wastewater in evaporation-percolation ponds shall not be less than 1.0 mg/l.
4. The WWTF and evaporation-percolation ponds shall be designed, constructed, operated, and maintained to prevent inundation or washout due to floods with a 100-year return frequency.
5. The effluent from the WWTF, prior to discharge to evaporation-percolation ponds, shall not exceed the following limits:

<u>Constituent</u>	<u>Units</u>	<u>Monthly Average</u>	<u>Daily Maximum</u>
BOD ₅ ¹	mg/l	40	80
Suspended Solids	mg/l	40	80
Settleable Solids	ml/l	0.2	0.5

¹ 5-day, 20° Celsius biochemical oxygen demand.

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6. Ponds shall not have a pH less than 6.5 or greater than 9.5.
7. Ponds shall be managed to prevent breeding of mosquitos. In particular:
 - a. An erosion control program should assure that small coves and irregularities are not created around the perimeter of the water surface.
 - b. Weeds shall be minimized through control of water depth, harvesting, or herbicides.
 - c. Dead algae, vegetation, and debris shall not accumulate on the water surface.
8. Public contact with wastewater shall be precluded through such means as fences and signs, or acceptable alternatives.
9. Evaporation-percolation ponds shall have sufficient capacity to accommodate allowable wastewater flow and design seasonal precipitation and ancillary inflow and infiltration during the nonirrigation season. Design seasonal precipitation shall be based on total annual precipitation using a return period of 100 years, distributed monthly in accordance with historical rainfall patterns. Freeboard shall never be less than two feet (measured vertically).
10. On or about 1 October of each year, available pond storage capacity shall at least equal the volume necessary to comply with Discharge Specification B.9, above.

C. Recycled Water Specifications

1. Recycled water shall meet the criteria contained in Title 22, CCR, Section 60301, et seq., and, if used in construction, the most current edition of "Guidelines for Use of Reclaimed Water for Construction Purposes," published by the California Department of Health Services.
2. The direct reuse of effluent shall be limited to construction purposes, irrigation of nonfood chain crops, animal feed crops not used to feed lactating dairy animals, and the vineyard as described in Finding No. 8. Other uses for recycled water shall be subject to the prior approval of the Executive Officer.
3. Application of recycled water to the farm land shall not exceed what is reasonably necessary for the vineyard (if utilized) and the pasture, considering both soil and climate. The nutrient loading rate of the crop, including the nutrient value of organic

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and chemical fertilizers and of solids and recycled water, shall not exceed the crop demand. Similarly, the hydraulic loading of the area shall not exceed the crop demand plus a reasonable leaching factor.

4. All areas where recycled water is to be used shall be posted with conspicuous signs with the following wording in a size that can be clearly read by the public:
"RECYCLED WATER--DO NOT DRINK--WASH THOROUGHLY WITH SOAP."
Each sign shall display the international symbol shown on Attachment B.
5. No physical connection shall exist between recycled water piping and any domestic water supply or domestic well, or between recycled water piping and any irrigation well that does not have air gap or reduced pressure principle device.
6. Standing water shall not be present on any portion of the land irrigated with recycled water 24 hours after each application has ceased.
7. The pasture and the vineyard shall be managed so as to prevent breeding of mosquitoes. More specifically:
 - a. Tail water must be returned and the applied wastewater must infiltrate completely within a 48-hour period.
 - b. Low-pressure and unpressurized pipelines accessible to mosquitoes shall not be used to store wastewater.
8. Irrigation or impoundment of wastewater shall not occur within 150 feet of any domestic well or within 50 feet of any irrigation well unless it is demonstrated to the satisfaction of the Executive Officer that a shorter distance is justified.

D. Sludge Disposal Specifications

1. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner that is consistent with the requirements of Chapter 15 and approved by the Executive Officer.
2. Any proposed change in sludge use or disposal practice from disposal on Discharger own farm land shall be reported to the Executive Officer **at least 90 days in advance** of the change.

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3. Use and disposal of sewage sludge shall comply with existing federal and state laws and regulations, including permitting requirements and technical standards in 40 CFR 503.

If the State Water Resources Control Board and the Regional Water Quality Control Board are given the authority to implement regulations contained in 40 CFR 503, this Order may be reopened to incorporate appropriate time schedules and technical standards.

4. Sludge applied to the Discharger's pasture or vineyard shall be Class A or B with regard to pathogens, as described in 40 CFR 503.32(a) and (b), respectively. The Discharger is encouraged to comply with the standards and time schedules contained in 40 CFR 503 for any off-site disposal of sludge whether or not they have been incorporated into this Order.
5. Sludge application to the vineyard shall be limited to the dormant season.
6. Sludge shall not be applied to soils with, or cause soils to have, a pH of less than 6.5.
7. Sludge shall not be staged or applied within 100 feet of domestic water supply wells or 50 feet of any irrigation well.
8. Sludge shall not be applied to WWTF pond levees.

E. Groundwater Limitations

The discharge, in combination with other sources, shall not cause underlying groundwater to:

1. Contain waste constituents in concentrations statistically greater than background water quality, except for conductivity. The incremental increase in EC over any five-year period shall not exceed 20 μ mhos/cm.

F. Provisions

1. The Discharger shall comply with Monitoring and Reporting Program No. 96-284, which is part of this Order, and any revisions thereto as ordered by the Executive Officer.
2. The Discharger shall comply with the "Standard Provisions and Reporting Requirements for Waste Discharge Requirements," dated 1 March 1991, which are

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attached hereto and by reference a part of this Order. This attachment and its individual paragraphs are commonly referenced as "Standard Provision(s)."

3. The Discharger shall maintain and fully implement the source control program of Ordinance No. 1996-2, including timely enforcement actions as appropriate. Proposed changes to source control program of Ordinance No. 1996-2 shall be provided to the Board at least **30 days** in advance of the District's consideration of the change.
4. At least **120 days** in advance of the District's acceptance of any new industrial discharge, the District shall evaluate the proposed discharge and submit a technical report to the Board that discusses in detail the impact of the discharge on the WWTF and how it will assure the additional discharge will not cause the WWTF to exceed its design capacity. The technical report must be prepared by a qualified California registered civil engineer. The report is subject to approval of the Executive Officer prior to any new industrial connection.
5. In the event of any change in control or ownership of land or waste discharge facilities described herein, the Discharger shall notify the succeeding owner or operator of the existence of this Order by letter, a copy of which shall be immediately forwarded to this office.

To assume operation under this Order, the succeeding owner or operator must apply in writing to the Executive Officer requesting transfer of the Order. The request must contain the requesting entity's full legal name, the State of incorporation if a corporation, the name and address and telephone number of the persons responsible for contact with the Board, and a statement. The statement shall comply with the signatory paragraph of Standard Provision B.3 and state that the new owner or operator assumes full responsibility for compliance with this Order. Failure to submit the request shall be considered a discharge without requirements, a violation of the California Water Code. Transfer shall be approved or disapproved by the Executive Officer.

6. Prior to initiating discharge, the Discharger shall submit a written report and certify whether the new domestic WWTF has been constructed as designed and is fully operable, and that discharge includes only the waste described in Finding No.5.
7. The Discharger must comply with all conditions of this Order, including timely submittal of technical and monitoring reports as directed by the Executive Officer. Violations may result in enforcement action, including Regional Board or court orders

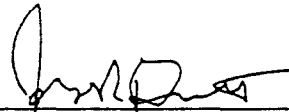
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requiring corrective action or imposing civil monetary liability, or in revision or rescission of this Order.

8. A copy of this Order shall be kept at the new domestic WWTF for reference by operating personnel. Key operating personnel shall be familiar with its contents.
9. The Board will review this Order periodically and will revise requirements when necessary.

I, JAMES R. BENNETT, Interim Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 6 December 1996.



JAMES R. BENNETT, Interim Executive Officer

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The Discharger shall implement this monitoring on the first day of operation of the new domestic Wastewater Treatment Facility (WWTF). The groundwater monitoring part of this program duplicates some of the requirements of Monitoring and Reporting Program (MRP) No. 69-263 (revised July 1994). The groundwater monitoring requirements of this MRP shall satisfy the requirements of MRP No. 69-263.

INFLUENT MONITORING

Influent samples shall be collected at the inlet of the headworks of the new domestic WWTF at approximately the same time as effluent samples. Influent monitoring shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u>
Flow	mgd	Continuous	Daily
pH	pH units	Grab	Weekly
BOD ₅ ¹	mg/l	24-hr Composite	2/Month
Total Suspended Solids	mg/l	24-hr Composite	2/Month

¹ Five-day, 20° Celsius biochemical oxygen demand.

EFFLUENT MONITORING

Effluent samples from the new WWTF shall be collected just prior to discharge to the evaporation-percolation ponds and should be representative of the volume and nature of the discharge. Time of collection of composite and grab samples shall be recorded. Effluent monitoring shall include at least the following:

<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency¹</u>
Settleable Solids	ml/l	Grab	Weekly
BOD ₅ ²	mg/l	24-hr composite	Weekly

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<u>Constituents</u>	<u>Units</u>	<u>Type of Sample</u>	<u>Sampling Frequency</u> ¹
Total Suspended Solids	mg/l	24-hr composite	Weekly
Conductivity	μmhos/cm	24-hr composite	Monthly
Total Dissolved Solids	mg/l	8-hr composite	Monthly
Total Nitrogen	mg/l	Grab	Quarterly
Standard Minerals ³	mg/l	Grab	Quarterly

¹ If results of monitoring a pollutant appear to violate effluent limitations, but monitoring frequency is not sufficient to validate violation (e.g., the monthly average for BOD), or indicate a violation and potential upset of the treatment process (e.g., less than minimum D.O.), the frequency of sampling shall be increased to confirm the magnitude and duration of violation, if any, and aid in identification and resolution of the problem.

² Five-day, 20° Celsius biochemical oxygen demand.

³ Standard mineral analyses shall include bicarbonate, calcium, carbonate, chloride, fluoride, iron, magnesium, nitrate (NO₃), potassium, sodium, sulfate, and total phosphorous.

SLUDGE MONITORING

Annually, the Discharger shall collect and analyze representative **composite** sludge samples from the treatment facilities prior to final disposal. Sampling and analytical procedures shall be in accordance with the criteria specified in 22 CCR and by the U.S. EPA in POTW Sludge Sampling and Analysis Guidance Document, August 1989, and *test methods for Evaluating Solid Waste, Physical Chemical Methods (SW-846)*. Sludge samples shall be analyzed for the following total and soluble metal concentrations.

Chromium	Cadmium	Copper	Lead	Iron	Manganese
Cobalt	Nickel	Silver	Zinc	Mercury	

By 28 February of each year, the Discharger shall submit a technical report including the analytical results, area of application and application rates, quantity of sludge disposed, and sludge disposal procedures relative to Department of Health Services' Manual of Good Practices for Landspreading of Sewage Sludge and EPA's *Process Design Manual for Land Application of Municipal Sludges* and Title 23, California Code of Regulations, Section 2511(f). If sludge is applied to the pasture or vineyard, the report shall also indicate types of crops grown.

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Sampling records shall be obtained for a minimum of five years. A log shall be kept of sludge quantities generated and of handling and disposal activities. The frequency of entries is discretionary; however, the log should be complete enough to serve as a basis for part of the annual report.

POND MONITORING

Pond water monitoring shall include the following:

<u>Constituent</u>	<u>Unit</u>	<u>Type of Sample</u>	<u>Frequency</u>
Dissolved Oxygen ¹	mg/l	Grab	Daily
pH	pH Units	Grab	Daily
Freeboard ²	feet	Observation	Weekly

¹ Samples shall be collected at a depth of one foot from each evaporation-percolation pond, opposite the inlet, and analyzed for dissolved oxygen. Samples shall be collected between 0800 and 0900 hours.

² Freeboard shall be monitored on the evaporation-percolation ponds in use to the nearest foot.

In addition, the Discharger shall inspect the condition of the evaporation-percolation ponds once per week and write visual observations in a bound log book. Notations shall include observations of whether weeds are developing in the water or along the bank, and their location; whether dead algae, vegetation, scum, or debris are accumulating on the pond surface and their location; whether burrowing animals or insects are present; and the color of the pond (e.g., dark sparkling green, dull green, yellow, grey, tan, brown, etc.). A copy of the entries made in the log during each month shall be submitted along with the monitoring report the following month. Where the O&M manual indicates remedial action is necessary, the Discharger shall briefly explain in the transmittal what action has been taken or is scheduled to be taken.

WATER SUPPLY MONITORING

A sampling station shall be established where a representative sample of the District water supply can be obtained. Water supply monitoring shall include at least the following:

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<u>Constituents</u> ¹	<u>Units</u>	<u>Sampling Frequency</u>
Conductivity	$\mu\text{mhos/cm}$	Quarterly
Standard Minerals ²	mg/l	Annually

¹ Constituents shall be reported as a flow weighted average from a representative number of supply wells and the monitoring report shall include copies of supporting calculations.

² Standard mineral analyses shall include bicarbonate, calcium, carbonate, chloride, fluoride, iron, magnesium, manganese, nitrate (NO_3), potassium, sodium, sulfate, total dissolved solids, and total phosphorous.

GROUNDWATER MONITORING

By 14 February 1997, the Discharger shall submit a work plan for the proposed expanded groundwater monitoring network (Finding No.16). The modified network shall consist of one or more background monitoring wells and three or more downgradient wells. All well locations and construction features are subject to the prior approval of the Executive Officer. The well network must be sufficient to monitor potential impacts of the disposal operation on the uppermost ground water aquifer at the property boundaries. By (90 days), the Discharger shall implement the approved monitoring network.

The downgradient wells shall constitute "points of compliance (POC)". In conjunction with background monitoring, monitoring of POC's will enable one to determine the areal and vertical extent of noncompliance with water quality protection standards. The groundwater surface elevation (in feet and hundredths, M.S.L.) in all wells shall be measured on a quarterly basis and used to determine the gradient and direction of groundwater flow. This information shall be displayed on a water flow net diagram for the site. Water samples shall be collected from wells in the approved monitoring network and analyzed as follows:

<u>Constituent</u>	<u>Units</u>	<u>Type of sample</u>	<u>Sampling Frequency</u>
Total Coliform Organisms	MPN/100 ml	Grab	Semi-annually
Conductivity	$\mu\text{mhos/cm}$	Grab	Semi-annually

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<u>Constituent</u>	<u>Units</u>	<u>Type of sample</u>	<u>Sampling Frequency</u>
pH	pH units	Grab	Semi-annually
Standard Minerals ¹	mg/l	Grab	Semi-annually

¹ Standard mineral analyses shall include bicarbonate, calcium, carbonate, chloride, fluoride, iron, magnesium, manganese, nitrate (NO₃), potassium, sodium, sulfate, total dissolved solids, and total phosphorous.

If the Discharger, through a verification monitoring program, or the Board verifies that water quality protection standards have been exceeded at or beyond the POC's, the Discharger shall notify the Board, or acknowledge the Board's findings, and submit a technical report **within 90 days**. The report must contain a plan and time schedule for implementing a corrective action program designed to achieve compliance with water quality protection standards.

REPORTING

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner to illustrate clearly whether the Discharger complies with waste discharge requirements.

Daily, weekly, or monthly monitoring reports shall be submitted to the Board by the **20th day of the following month**. Quarterly monitoring results shall be submitted by the **20th day of the month following each calendar quarter**. Annual monitoring results shall be submitted by **28 February of each year**.

In reporting the monitoring data, the Discharger shall arrange the data in tabular form so that the date, the constituents, and the concentrations are readily discernible. The data shall be summarized in such a manner to illustrate clearly whether the discharge complies with waste discharge requirements. The highest daily maximum for the month, monthly and weekly averages, and medians, and removal efficiencies (%) for BOD and Suspended Solids, should be determined and recorded.

If the Discharger monitors any pollutant at the locations designated herein more frequently than is required by this Order, the results of such monitoring shall be included in the discharge monitoring report.

By **28 February of each year**, the Discharger shall submit a written report to the Executive Officer containing the following:

MONITORING AND REPORTING PROGRAM
DEL REY COMMUNITY SERVICES DISTRICT
NEW DOMESTIC WWTF
FRESNO COUNTY

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- a. The names, titles, certificate grade (if any) and general responsibilities of persons operating and maintaining the wastewater treatment plant.
- b. The names and telephone numbers of persons to contact regarding the new domestic WWTF for emergency and routine situations.
- c. A certified statement of when the flow meter and other monitoring instruments and devices were last calibrated, including identification of who did the calibration (Standard Provision C.4).
- d. A statement whether the current operation and maintenance manual, and contingency plan, reflect the new domestic WWTF plant as currently constructed and operated, and the dates when these documents were last reviewed for adequacy.

The Discharger may also be requested to submit an annual report to the Board with tabular and graphical summaries of the monitoring data obtained during the previous year. Any such request shall be made in writing. The report shall discuss the corrective actions taken and planned to bring the discharge into full compliance with the waste discharge requirements.

All reports submitted in response to this Order shall comply with the signatory requirements in Standard Provision B.3.

The Discharger shall implement the above monitoring program on the first day of the month following adoption of this Order.

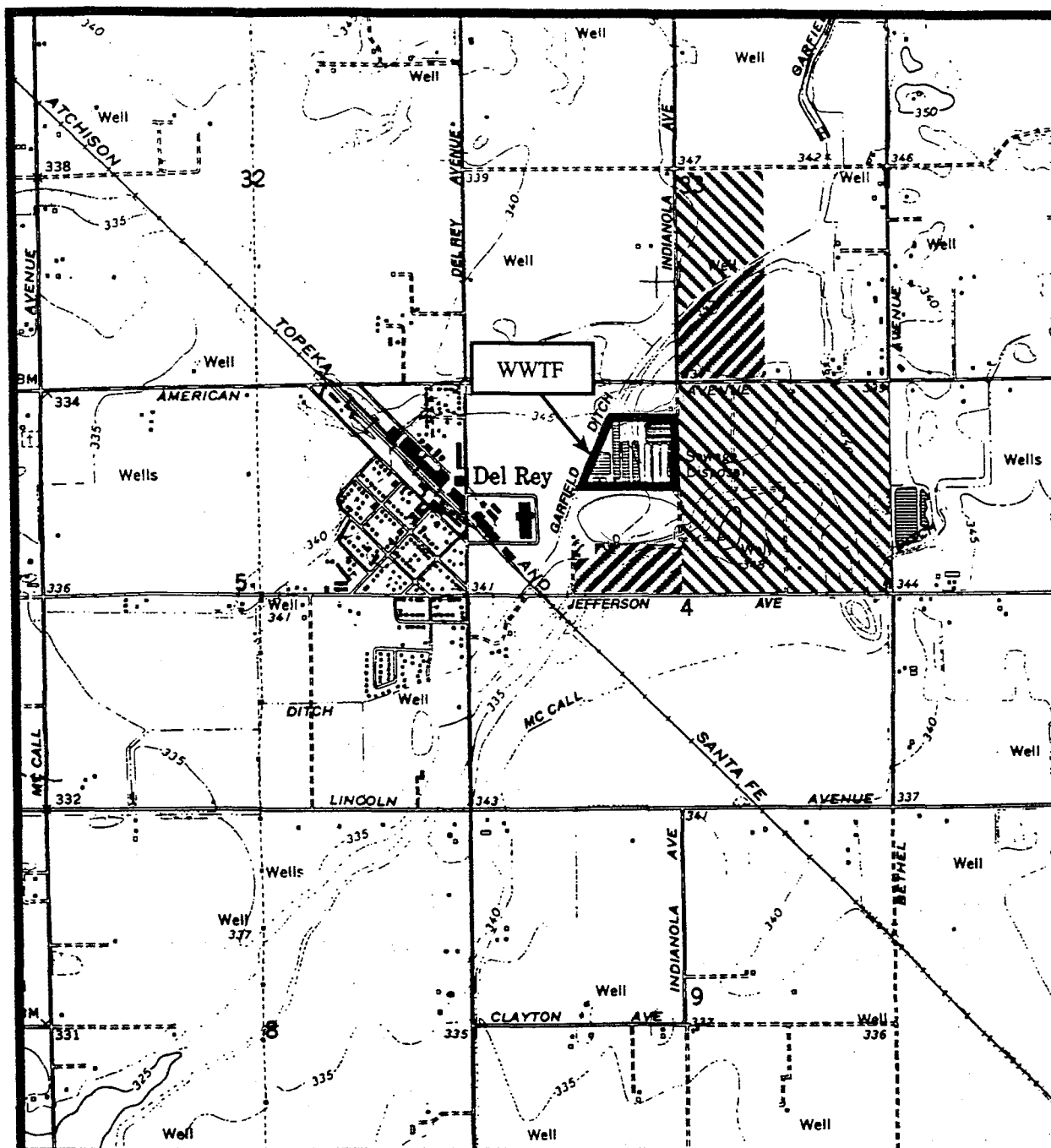
Ordered by: _____

JAMES R. BENNETT, Interim Executive Officer

6 December 1996

(Date)

RA:ra/rac



ATTACHMENT A

Vicinity Map

DEL REY COMMUNITY SERVICE DISTRICT NEW DOMESTIC WASTEWATER TREATMENT FACILITY FRESNO COUNTY

NE 1/4 Section 4, NE 1/4 of NW 1/4 Section 4,
T15S, R22E, and W 1/2 of SE 1/4 Section 33,
T14S, R22E, MDB&M
Sanger, 7 1/2' USGS Quad, 1969
(Not to Scale)



ATTACHMENT B

INFORMATION SHEET

DEL REY COMMUNITY SERVICES DISTRICT NEW DOMESTIC WWTF FRESNO COUNTY

The Del Rey Community Services District submitted a Report of Waste Discharge and technical information for a proposed domestic Wastewater Treatment Facility (hereafter new domestic WWTF). The new domestic WWTF will be next to the existing WWTF at 11495 East American Avenue in Del Rey.

The District operates a WWTF of 0.35 million gallons per day (mgd) capacity overloaded by industrial discharges, mostly fruit processing and packing plants. The Discharger has been in continuous violation of the five-day effluent Biochemical Oxygen Demand (BOD₅) and average monthly flows since 1985. In 1989, Cease and Desist Order No. 89-153 (C&D) was adopted by the Board. Due to violations of the C&D, in April 1991 the matter was referred to the State Attorney General (AG). In 1992, the AG filed for a preliminary and permanent injunction against the Discharger in Fresno County Superior Court. In October 1993, Judgment Pursuant to Stipulation Case No. 474246-6, was approved by Fresno County Superior Court.

In 1993, the District began to implement a number of interim corrective measures toward achieving compliance until a new treatment facility could be constructed. The interim measures significantly enhanced treatment, but the discharger continued to be in violation of the WDRs. The Discharger submitted a long-term improvement plan in 1994 and proposed construction of separate industrial (raisin packers, only) and domestic wastewater treatment facilities to permanently resolve violations. However Del Rey Packing Company and Enoch Packing Company, the remaining packers in 1995, rejected participation and submitted proposals for land reclamation. In August 1996, the Board adopted waste discharge requirements for Del Rey and Enoch Packing companies.

The Discharger included a source control program in its most recent ordinance, adopted in July 1996. Due to the Discharger's poor history of enforcing the earlier ordinances or otherwise limiting individual waste volume, the Order requires the Discharger to fully implement the source control program of the new ordinance and that any proposed amendment to the existing source control program must be reported to the Board in advance.

Construction of the new domestic WWTF will likely be completed in December 1996. The new domestic WWTF will be an extended aeration system with a design capacity of 0.3 million gallons per day (mgd). The WWTF will be designed to treat only waste with BODs not to exceed 300 mg/l. The design parameters of the new WWTF are based on influent BOD₅ and total suspended solids (TSS) concentrations of 300 mg/l.

This Order requires the District to submit a technical report at least 120 days in advance of the District's acceptance of any industrial discharge that discusses the impact of the discharge on the WWTF. The report is required to ensure that organic constituents discharged into the WWTF do not exceed the design capacity of the WWTF and must receive approval of the Executive Officer before the District allows connection.

DEL REY CSD, DOMESTIC WWTF
FRESNO COUNTY

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The proposed order is independent of regulation of the existing WWTF and Order No. 69-263 that regulates discharge from that WWTF. All enforcement actions are predicated on violations of Order No. 69-263, and all violations will be remedied when the new domestic WWTF is on-line, industrial contributors cease discharge, and discharge from the existing WWTF cease. After that happens, Order No. 69-263 can be rescinded.

Discharge will be to six evaporation-percolation ponds. Effluent from the evaporation-percolation ponds will mix with irrigation water and be recycled on 39 acres of pasture owned by the Discharger. In addition to the pasture, the Discharger anticipates purchasing a 40 acre-vineyard (next to the pasture) for wastewater recycling. Border irrigation is used on 20 acres of the pasture and sprinkler irrigation on the remaining 19 acres. If the vineyard is purchased, it will be irrigated with a mixture of recycled water and irrigation water via a furrow irrigation system.

In February 1996, a Memorandum of Agreement (MOA) was adopted between the State Water Resources Control Board (SWRCB) and DHS. The MOA provides coordinated review and approval of recycling projects to assure that respective authorities of the two departments are exercised cohesively. The Discharger submitted a water recycling report and the report was reviewed by DHS. This Order includes specifications for the recycled water. Comments provided by DHS have been considered and incorporated in the specifications.

In 1990, the Discharger installed a groundwater monitoring network and began to submit monitoring reports in 1992. Due to inclusion of the pasture and the vineyard, the Discharger plans to modify its current groundwater monitoring network by installing additional monitoring wells. This Order requires the Discharger to submit a work plan for the modified groundwater monitoring network within 30 days after adoption of this Order.

Based on the groundwater monitoring reports, depth to the upper most groundwater in the vicinity of the treatment plant range from 30 to 70 feet bgs. Groundwater flow direction is to the south and southwest. The most recent groundwater monitoring reports (March 1996) show that the average EC in the upgradient and downgradient wells were 270 and 540 $\mu\text{mhos/cm}$, respectively.

According to the Soil Survey of Eastern Fresno County, the dominant top soil (within the root zone) is Exeter sandy loam and Exeter loam with soil permeability ranging from 2.5 to 5 inches.

On 19 December 1995, the Del Rey Community Services District adopted a mitigated Negative Declaration for the project in accordance with the California Environmental Quality Act (CEQA) (Public Resources Code Section 21000, et seq.) and the State CEQA guidelines. The project as approved will not have a significant impact on water quality if operated in accordance with the proposed Order.

RA:ra/rac:12/6/96